

ORIGINAL

(S E R V E D)
(February 15, 2001)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

February 15, 2001

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**RULING APPROVING AGREEMENT CONCERNING
STIPULATIONS ENTERED INTO BETWEEN
COMPLAINANTS GOVERNMENT OF GUAM, ET AL.,
AND RESPONDENT SEA-LAND SERVICE, INC.**

Complainants, the Government of Guam, et al., and respondent Sea-Land Service, Inc. have filed a three-page Agreement (attached hereto) concerning stipulations which they have entered into to expedite and minimize discovery and litigation costs of the remainder of the reparations phase of this proceeding.

Attachment A¹ to the Agreement pertains to 421 collect shipments. In five columns, it lists “SHIPPER,” “SAILDT” (sail date), “Bill of Lading #,” “Coll/BL Amt” (collect bill of lading amount), and “Shipper on BL.”

Attachment B² to the Agreement relates to 123 prepaid shipments. It also has five columns with headings similar to those on Attachment A, except the fourth column which is headed, “PP/BL Amt” (prepaid bill of lading amount).

The Agreement was filed on February 5, 2001, triggering the 45-day clock for complainants to complete preparation of their reparations statements and file them on March 22, 2001, pursuant to the order of March 1, 1999, as modified by the ruling dated September 13, 1999, approving an agreement dated September 9, 1999.

For convenience, the current schedule for the next phase of this proceeding pursuant to the above-noted agreements³ appears next:

¹See public docket.

²See public docket.

³This ruling is not intended to affect or change in any way any reservation of position or right of any party as shown in the prior rulings and agreements.

Filing or Due Date

Event

- | | | |
|----|----------------|--|
| A. | March 22, 2001 | Complainants' submission of their entire evidentiary case on reparations, which shall include all data and documents required by Rule 252, as well as any other data, documents or evidence that Complainants may wish to include as part of their evidentiary case on reparations, including any documents or other evidence relied on by Complainants (i) to establish that a particular shipment is eligible for reparations in this proceeding, or (ii) to support the amount of reparations claimed, including any affidavits explaining or justifying the methodology used to calculate such amounts. (See March 1, 1999 ruling at 4.) |
|----|----------------|--|

The following appears in the September 9, 1999 Agreement approved in the September 13, 1999 ruling:

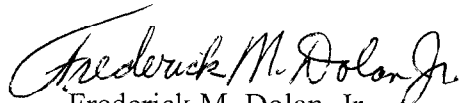
Respondents' Discovery from Complainants

1. Complainants and respondents agree that the most appropriate time for respondents to take discovery from complainants is during the period between complainants' submission of their entire evidentiary case on reparations and respondents' dispositive motions directed to that case (see 3/1/99 scheduling order, page 4). Accordingly, complainants and respondents agree that the 3/1/99 schedule in this docket should be modified as follows: (i) 21 days after complainants' submission of their entire evidentiary case on reparations, respondents may file discovery requests addressed to complainants. (ii) Respondents' dispositive motions will be due 45 days after complainants' responses to such discovery requests (except to the extent that objections thereto may be sustained⁴) are complete.

⁴It is understood that complainants retain the right to object to particular discovery requests under the normal rules governing discovery (however, complainants will not object on the ground that it is impermissible for respondents to conduct discovery at that time) If complainants object to particular requests, respondents have the right to ask the Administrative Law Judge to issue an order compelling responses

NOTE It is earnestly requested in the event that the parties are unable to resolve discovery differences, that rather than file a motion to compel, they request an informal conference and it will be immediately convened

	<u>Filing or Due Date</u>	<u>Event</u>
B.	April 12, 2001 (21 days after complainants' Submission of their entire evidentiary case on reparations)	Respondents may file discovery requests addressed to complainants.
C.	45 days after complainants' responses to such discovery requests (except to the extent that objections thereto may be sustained ⁵) are complete ⁶	Respondents' dispositive motion(s) directed to complainants' evidentiary case, including motions to dismiss claims for reparations as to specific shipments on the ground such shipments are ineligible for reparations as a matter of law, and/or motions for summary judgment on the ground that complainants' method of calculating the amount of reparations is erroneous as a matter of law.
D.	"30 days thereafter" (30 days after the due date in "C" above)	Complainants' opposition to respondents' dispositive motion(s).
E.	"15 days thereafter" (15 days after the due date in "D" above)	Respondents' reply to complainants' opposition.
F.	Thereafter	Rulings on respondents' dispositive motions.


 Frederick M. Dolan, Jr.
 Administrative Law Judge

⁵See footnote 4.

⁶Although the draft schedule prescribes no time within which complainants must complete and furnish their discovery responses (understandably because of the possibility of objection), they should expedite this portion of the schedule as well.

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OFFICE OF
ADMIN LAW JUDGES

Docket No. 89-26 Phase II

V.

Respondents.

1. It is understood and agreed that these stipulations are intended solely to expedite and minimize discovery and litigation costs of the reparations phase of the above-captioned proceeding. The parties to these

stipulations agree that the stipulations are limited to the specific shipments and parties to this phase (Phase 2) of this proceeding as set out in the attached table;

2. These stipulations do not represent an admission, acknowledgement, precedent, formula, or method for determining whether any shipment, except those specifically set out and contained in this attachment has been or may have been paid to Sea-Land or to any other party to this proceeding; and
3. These stipulations do not constitute an admission by Sea-Land that any particular shipment moved subject to the jurisdiction of the Federal Maritime Commission.

Therefore, and pursuant to the limitations set out above, the Named Complainants and Sea-Land enter into the following stipulations:

STIPULATIONS

1. It is stipulated and agreed that freight charges for the shipments set out in Attachment A have been paid to Sea-Land, and further, that those freight charges were paid to Sea-Land by GovGuam, Pacific International Company, Inc., Town House Department Stores, Inc., or Micronesian Brokers Incorporated, or their designated forwarders, brokers, or agents.
2. It is stipulated and agreed that freight charges for the shipments set out in Attachment B have been paid to Sea-Land by persons other than the Named Complainants or their designated forwarders, brokers, or agents. The Named Complainants expressly reserve the right to assert claims of entitlement for reparations for any or all of the shipments set out in Attachment B.¹

¹ The shippers designated on the bills of lading listed in Attachment B are not considered to be forwarders, brokers or agents for purposes of this paragraph.

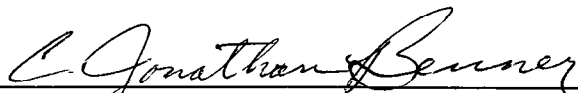
3. GovGuam hereby agrees to withdraw and to refrain from renewing its request to Sea-Land to produce ARIQ reports, should they be retrievable, for any shipments or accounts listed on Schedules A or B and hereby agrees that Sea-Land's discovery obligation to Complainants in this phase of the proceeding has been completed.
4. It is stipulated and agreed that if any party identifies and produces a bill of lading, cancelled check or other mutually acceptable document evidencing that a shipment currently set out in Attachment A (or B) should be transferred to Attachment B (or A), the document will be produced to the other parties. If the parties agree the shipment will be transferred to the other attachment.
5. It is stipulated and agreed that each party to this agreement reserves all rights and remedies that each may have with regard to the question of reparations for the shipments covered by these stipulations (e.g., quantum of reparations, entitlement of any shipment or any person with respect to any shipment to reparations, and questions as to whether shipments are or are not within the jurisdiction of the Federal Maritime Commission).

Respectfully submitted,



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On Behalf of the Government of
Guam, et al.



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On Behalf of SL Service, Inc.

January 26, 2001